

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF AGABEKYAN AND OTHERS v. RUSSIA

(Applications nos. 22474/21 and 17 others –
see appended list)

JUDGMENT

STRASBOURG

14 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Agabekyan and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention and its Protocol.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocol, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocol in the light of its findings in *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various

aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Glukhin v. Russia*, no. 11519/20, §§ 64-91, 4 July 2023, concerning unjustified processing of the applicant's personal biometric data by using highly intrusive facial recognition technology in administrative offence proceedings in order to identify, locate and arrest him; and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning the fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocol thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Branko Lubarda
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	22474/21 05/04/2021	**Narek Gagikovich AGABEKYAN** 1995	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Tomsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Tomsk Regional Court 11/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Tomsk Regional Court, 11/03/2021	3,500
2.	22582/21 02/04/2021	**Pavel Dmitriyevich BAGDALOV** 1998	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Tomsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Tomsk Regional Court 05/03/2021	Art. 5 (1) - unlawful detention - Detention from 1 p.m. to 2 p.m. on 31/01/2021 for drawing up an administrative offence record; 3 hours later the applicant was brought to the police station, where he was detained from 6 p.m. to 11.30 p.m. waiting for a court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Tomsk Regional Court, 05/03/2021	4,000
3.	45286/21 23/08/2021	**Olga Vadimovna VASILYEVA** 1950	Sabinin Andrey Vasilyevich Stavropol	Rally "Free Navalnyy" Pyatigorsk 31/01/2021	article 20.2.2. § 1 of CAO	detention for 1 day	Stavropol Regional Court 24/03/2021	Art. 5 (1) - unlawful detention - arrest and detention from 1 p.m. on 31/01/2021 to 2 p.m. on 01/02/2021 until the court hearing for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Stavropol Regional Court, 24/03/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	46104/21 10/09/2021	**Nikita Aleksandrovich BAZHIN** 1993	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful detention - arrest and detention on 23/01/2021 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 22/03/2021	4,000
5.	46129/21 31/08/2021	**Andrey Sergeyevich STARIKOV** 1998	Bochilo Anna Yevgenyevna Barnaul	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 04/03/2021	Art. 5 (1) - unlawful detention - arrest and detention from 5.20 p.m. on 31/01/2021 to 11.30 a.m. on 01/02/2021 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 04/03/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
6.	1276/22 24/12/2021	**Roman Sergeyevich PROKHOROV** 1993	Gilmanov Mansur Idrisovich Podolsk	Rally "Freedom to the political prisoners" Moscow 04/11/2020	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 27/09/2021	Art. 5 (1) - unlawful detention - arrest and detention from 2.10 p.m. to 8.45 p.m. on 04/11/2020 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 27/09/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
7.	3042/22 14/12/2021	**Fedor Anatolyevich KOMAROV** 1999	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/06/2021	Art. 5 (1) - unlawful detention - arrest and detention on 23/01/2021 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 21/06/2021	4,000
8.	11599/22 17/02/2022	**Olga Anatolyevna NAZARENKO** 1975	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Ivanovo 21/04/2021	article 20.2 § 8 of CAO	100 hours of community work	Ivanovo Regional Court 18/08/2021	Art. 5 (1) - unlawful detention - arrest and detention from 7.05 p.m. on 21/04/2021 to 1.10 a.m. on 22/04/2022 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Ivanovo Regional Court, 18/08/2021	5,000
9.	12079/22 09/02/2022	**Vitaliy Dmitriyevich PETRUKHIN** 1989	Benyash Mikhail Mikhaylovich Sochi	Rally "Free Navalnyy" Krasnodar 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 09/12/2021		3,500
10.	13220/22 18/02/2022	**Tatyana Vasilyevna KUDRYASHOVA** 1992	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 18/08/2021	Art. 5 (1) - unlawful detention - arrest and detention from 4 p.m. to 11 p.m. on 23/01/2021 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Nizhniy Novgorod Regional Court, 18/08/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
11.	24067/22 09/02/2022	**Andrey Pavlovich PETRUKHIN** 2002	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 21/04/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 17/08/2021	Art. 5 (1) - unlawful detention - Detention at the police station on 30/04/2021 for 5 hours for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 17/08/2021, Art. 8 (2) - restrictions on the right to private life of participants in public assemblies - Use of facial recognition technology for the identification of the applicant as a participant of a rally and his subsequent conviction (raised on appeal)	5,000
12.	24713/22 06/08/2021	**Andrey Viktorovich KOROVYANSKIY** 1988	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 08/02/2021	Art. 5 (1) - unlawful detention - arrest and detention from 12.10 p.m. on 31/01/2021 to 1.40 p.m. on 01/02/2021 until the court hearing for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 08/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
13.	31689/22 13/06/2022	**Yekaterina Aleksandrovna SHAKUN** 1996	Bochilo Anna Yevgenyevna Barnaul	Anti-war protest Rostov-on-Don 06/03/2022	article 19.3 § 1 of CAO	detention for 15 days	Rostov Regional Court 19/03/2022	Art. 5 (1) - unlawful detention - arrest and detention from 6 p.m. on 06/03/2022 to 11 a.m. on 07/03/2022 until the court hearing for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Rostov Regional Court, 19/03/2022, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
14.	33769/22 22/06/2022	**Roman Igorevich ZHUKOV** 1985	Bochilo Anna Yevgenyevna Barnaul	Anti-war protest Ufa 06/03/2022	article 19.3 § 1 of CAO	detention for 24 hours	Supreme Court of the Bashkortostan Republic 11/04/2022	Art. 5 (1) - unlawful detention - arrest and detention from 4.10 p.m. on 06/03/2022 to 2 p.m. on 07/03/2022 until the court hearing for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Supreme Court of the Bashkortostan Republic, 11/04/2022	5,000
15.	40255/22 30/07/2022	**Marat Kadirovich KHUSAINOV** 1978	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 24/02/2022	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Nizhniy Novgorod Regional Court 13/05/2022	Art. 5 (1) - unlawful detention - arrest and detention from 7.40 p.m. on 24/02/2022 to 7.20 p.m. on 25/02/2022 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Nizhniy Novgorod Regional Court, 13/05/2022	4,000

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16.	41557/22 12/08/2022	**Valentina Aleksandrovna SAFONOVA** 1994	Baranova Natalya Andreyevna Moscow	Anti-war protest St Petersburg 25/02/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 12/04/2022	Art. 5 (1) - unlawful detention - arrest and detention from 9.30 p.m. on 25/02/2022 to 3.45 p.m. on 26/02/2022 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: St Petersburg Regional Court, 12/04/2022	4,000
17.	47578/22 06/09/2022	**Larisa Timofeyevna SHVYNDINA** 1959		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 15/06/2022	Art. 5 (1) - unlawful detention - arrest and detention from 7.30 p.m. on 24/02/2022 to 1.30 a.m. on 25/02/2022 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 15/06/2022	4,000
18.	52091/22 07/10/2022	**Mikhail NAYDEN** 1982	Baranova Natalya Andreyevna Moscow	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 09/06/2022	Art. 5 (1) - unlawful detention - arrest and detention from 2.11 p.m. on 06/03/2022 to 1 a.m. on 07/03/2022 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 09/06/2022	4,000

[1] Plus any tax that may be chargeable to the applicants.